



U.S. Department
of Transportation

Research and
Special Programs
Administration

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400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11465

EXPIRATION DATE: August 31, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Monsanto Co., St. Louis, Missouri.
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of an existing inventory of approximately 325 non-DOT specification bulk fiberboard boxes containing solid hazardous waste, Class 9 material for disposal. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.240(d) in that a non-DOT specification packaging is authorized.
5. BASIS: This exemption is based on the application of Monsanto Co. dated April 27, 1995, and supplemental information dated December 9, 1996 and August 20, 1997, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Hazardous waste, solid, n.o.s.	9	NA3077	III

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed are an existing inventory of approximately 325 non-DOT specification sift-proof bulk fiberboard box containing Triallate herbicide absorbed into clay granules. Dimensions of the box are approximately 39" long, 32" wide and 36" high.

b. OPERATIONAL CONTROLS - This material must be offered for transportation by private or contract carrier or by a common carrier in a transport vehicle used exclusively for such service. The transport vehicle must proceed directly from Monsanto's plant to a waste disposal facility.

8. SPECIAL PROVISIONS:

MARKING - Each non-DOT specification bulk fiberboard box must be plainly and durably marked on a contrasting background "DOT-E 11465" as specified in 49 CFR 172.302.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 23 1987

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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